

25STCV24753 25STCV24753

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Case Number: 25STCV24753 Hearing Date: August 3, 2026 Dept: 510

No.

6 - Daryoush Sameyah v. Bradley C. Gage

Defendant

Bradley C. Gage's Demurrer and

Motion to Strike Portions of Plaintiff's Complaint

Demurrer

Defendant Bradley C. Gage demurs

to Plaintiff Daryoush Sameyah's complaint alleging three causes of action for legal malpractice, breach of fiduciary duty, and negligent misrepresentation.

A.

Request for Judicial Notice

Defendant

requests the Court take judicial notice of 10 pleadings and orders from the underlying civil suit. These are court records and subject to judicial notice under Evidence Code section 452(d).

Defendant's request for judicial notice is granted.

B.

Evidentiary Objections

Defendant makes six objections to Plaintiff's

evidence submitted in support of his opposition. The objections are sustained.

C.

Statute of Limitations

Defendant demurs to the complaint on

the ground that all causes of action are time-barred by the one-year statute of limitations.

A

demurrer should be sustained where “the complaint shows on its face that the statute [of limitations] bars the action.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) The Court must determine which statute of limitations applies and when the claim accrued. (Id. at p. 1316.)

1. Applicable

Statute of Limitations

Code

of Civil Procedure 340.6 provides, “An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.”

This is an action against an attorney

for legal malpractice. Plaintiff alleges that Defendant did not adequately represent his interests in an underlying civil claim against Rami Gishi. (Compl., ¶¶ 6-12.) Plaintiff alleges that this negligence caused Plaintiff to suffer financial, reputational, and emotional harm. (Id., ¶ 13.) As such, the statute of limitations in Code of Civil Procedure section 340.6 applies to this action.

2. Date

of Accrual

The

complaint alleges Plaintiff retained Defendant to represent him in a civil claim against Rami Gishi on August 2, 2022. (Compl., ¶ 6.) Plaintiff alleges

that the complaint that was filed in that dispute lacked key legal elements and did not accurately reflect Plaintiff's facts. (Id., ¶ 8.) In addition, Plaintiff alleges that Defendant failed to assert additional tort claims and failed to advise him regarding the disadvantages of pursuing a malicious prosecution claim. (Id., ¶¶ 9-10.) Plaintiff's complaint was disposed of via Anti-SLAPP motion on February 17, 2023. (RJN, Ex. 3.) Plaintiff appealed the trial court's decision on the Anti-SLAPP motion, and the Court of Appeal issued its order affirming the trial court's ruling on December 30, 2024. (RJN, Ex. 1.) Plaintiff filed this complaint alleging legal malpractice on August 22, 2025.

Plaintiff

does not allege sufficient facts to invoke the delayed discovery rule. From the complaint and the documents of which the Court takes judicial notice, it appears that Plaintiff had notice of all pertinent facts more than one year prior to the filing of this action. Plaintiff contends otherwise, but to rely on the discovery rule, he "must specifically plead facts to show (1) the time and manner of

discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (Fox v. Ethicon

Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808.) While Plaintiff argues, in

his opposition brief, that he did not discover the facts constituting

Defendant's wrongful acts until the Court of Appeal issued its decision in

December 2024, the complaint does not allege these facts. The Court cannot rely

on extrinsic evidence, such as the Declaration of Nehoray attesting to the time

and manner of discovery, when ruling on Defendant's demurrer. The Court is

confined to the allegations in the complaint and judicially-noticed documents.

Therefore, as alleged, this action is
barred by the statute of limitations.

Motion

to Strike

Defendant

also moves to strike Plaintiff's

request for punitive damages.

As an initial matter, Defendant's notice of

motion is defective. "A notice of motion to strike a portion of a pleading must

quote in full the portions sought to be stricken except where the motion is to

strike an entire paragraph, cause of action, count, or defense. Specifications

in a notice must be numbered consecutively." (Cal. Rules of Court, rule

3.1322(a).) Rather than quoting in full the portion to be stricken, Defendant simply states he “will move pursuant to Code of [sic] Civil Procedure sections 435 and 436 to strike from the Complaint the request for punitive damages.” (Notice of Motion to Strike, at p. 1.) This does not quote the request for punitive damages verbatim as required. Only in reply does Defendant specify that he moves to strike item 4 in the prayer of relief for “Punitive damages for egregious breach of fiduciary duty.”

Despite this defect, the Court will consider the merits of the motion. Counsel is advised to comply with all court rules in the future.

Courts may strike allegations that are “not essential to the statement of a claim or defense,” “neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “[a] demand for judgment requesting relief not supported by the allegations.” (Code Civ. Proc., § 431.10(b).) Courts may strike allegations related to punitive damages where the facts alleged “do not rise to the level of malice, oppression or fraud necessary” to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.)

Here, Plaintiff does not allege sufficient facts for punitive damages. As currently alleged, the complaint’s minimal factual allegations sound in negligence, and do not demonstrate any malice, oppression, or fraud committed by Defendant. However, because there is a reasonable possibility of amendment and because Plaintiff is already being afforded the opportunity to amend, the Court will grant leave to amend.

Disposition

Defendant Bradley C. Gage’s demurrer to Plaintiff Daryoush Sameyah’s complaint is sustained with 21 days’ leave to amend.

Defendant Bradley C. Gage’s motion to strike portions of Plaintiff Daryoush Sameyah’s complaint is granted with 21 days’ leave to amend.